



Senate

General Assembly

File No. 172

February Session, 2026

Substitute Senate Bill No. 228

Senate, March 25, 2026

The Committee on General Law reported through SEN. MARONEY of the 14th Dist., Chairperson of the Committee on the part of the Senate, that the substitute bill ought to pass.

AN ACT CONCERNING LIQUOR PERMITS AND TOBACCO BARS.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subsection (k) of section 30-22a of the 2026 supplement to
2 the general statutes is repealed and the following is substituted in lieu
3 thereof (*Effective October 1, 2026*):

4 (k) For purposes of compliance with this section, "cafe" includes a
5 tobacco bar that: (1) During the calendar year ending December 31, 2002,
6 generated at least ten per cent of the tobacco bar's total annual gross
7 income from on-site sales of tobacco products and rentals of on-site
8 humidors; or (2) commenced operations during the period beginning
9 January 1, 2003, and ending December 31, [2022] 2025, and (A) generates
10 at least sixty per cent of the tobacco bar's total annual gross sales from
11 on-site sales of tobacco products, as defined in subparagraph (E) of
12 subdivision (2) of subsection (b) of section 19a-342, as amended by this
13 act, and subparagraph (F) of subdivision (2) of subsection (b) of section
14 19a-342a, as amended by this act, as determined in an annual audit
15 conducted by an independent certified public accountant, (B) is located

16 in a municipality that has a population of at least [eighty] forty thousand
17 and does not contain another tobacco bar, (C) does not allow cigarettes
18 or cigarette tobacco on the premises, (D) contains a walk-in or stand-up
19 humidor as a built-in feature on the premises, (E) is located in a building
20 (i) in which no other owner-occupant, lessee or tenant has a right to
21 utilize the same space as the tobacco bar, or (ii) that uses the tobacco
22 bar's own heating, ventilation or air conditioning system to prevent
23 commingling of air, (F) is located in premises equipped with a
24 ventilation system that (i) provides local mechanical exhaust with no
25 recirculation, (ii) circulates at least sixty cubic feet of outdoor air per
26 person per minute to provide adequate indoor air quality, and (iii)
27 satisfies the requirements established in ANSI/ASHRAE 62-2001,
28 "ventilation for acceptable indoor air quality", as amended from time to
29 time, and (G) provides health coverage to the tobacco bar's employees
30 and their dependents in accordance with other applicable law,
31 including, but not limited to, the Patient Protection and Affordable Care
32 Act, P.L. 111-148, as amended by the Health Care and Education
33 Reconciliation Act, P.L. 111-152, as both may be amended from time to
34 time, and regulations adopted thereunder.

35 Sec. 2. Subsection (b) of section 19a-342 of the general statutes is
36 repealed and the following is substituted in lieu thereof (*Effective October*
37 *1, 2026*):

38 (b) (1) Notwithstanding the provisions of section 31-40q, no person
39 shall smoke: (A) In any area of a building or portion of a building,
40 owned and operated or leased and operated by the state or any political
41 subdivision of the state; (B) in any area of a health care institution,
42 including, but not limited to, a psychiatric facility; (C) in any area of a
43 retail establishment accessed by the general public; (D) in any
44 restaurant; (E) in any area of an establishment with a permit issued for
45 the sale of alcoholic liquor pursuant to section 30-20a, 30-21, 30-21b, 30-
46 22, 30-22c, 30-22g, 30-28, 30-28a, 30-33a, 30-33b, 30-35a, 30-37a, 30-37e or
47 30-37f, in any area of an establishment with a permit for the sale of
48 alcoholic liquor pursuant to section 30-22aa issued after May 1, 2003,
49 and, on and after April 1, 2004, in any area of an establishment with a

50 permit issued for the sale of alcoholic liquor pursuant to section 30-22a,
51 as amended by this act, or 30-26; (F) in any area of a school building or
52 on the grounds of such school; (G) within a child care facility or on the
53 grounds of such child care facility, except, if the child care facility is a
54 family child care home, as defined in section 19a-77, such smoking is
55 prohibited only when a child enrolled in such home is present during
56 customary business hours; (H) in any passenger elevator; (I) in any area
57 of a dormitory in any public or private institution of higher education;
58 (J) in any area of a facility equipped with screens for the simulcasting of
59 off-track betting race programs or jai alai games; (K) in any room offered
60 as an accommodation to guests by the operator of a hotel, motel or
61 similar lodging; (L) in any area of a correctional facility or halfway
62 house; or (M) in any area of a platform or a shelter at a rail, busway or
63 bus station, owned and operated or leased and operated by the state or
64 any political subdivision of the state. For purposes of this subsection,
65 "restaurant" means space, in a suitable and permanent building, kept,
66 used, maintained, advertised and held out to the public to be a place
67 where meals are regularly served to the public, "school" has the same
68 meaning as provided in section 10-154a and "child care facility" has the
69 same meaning as provided in section 19a-342a, as amended by this act.

70 (2) Subdivision (1) of this subsection shall not apply to the following:
71 (A) Public housing projects, as defined in subsection (b) of section 21a-
72 278a; (B) any classroom where demonstration smoking is taking place
73 as part of a medical or scientific experiment or lesson; (C)
74 notwithstanding the provisions of subparagraph (E) of subdivision (1)
75 of this subsection, the outdoor portion of the premises of any permittee
76 listed in subparagraph (E) of subdivision (1) of this subsection,
77 provided, in the case of any seating area maintained for the service of
78 food, at least seventy-five per cent of the outdoor seating capacity is an
79 area in which smoking is prohibited and which is clearly designated
80 with written signage as a nonsmoking area, except that any temporary
81 seating area established for special events and not used on a regular
82 basis shall not be subject to the smoking prohibition or signage
83 requirements of this subparagraph; (D) any medical research site where
84 smoking is integral to the research being conducted; or (E) any tobacco

85 bar. For purposes of this subdivision, "outdoor" means an area which
86 has no roof or other ceiling enclosure; "tobacco bar" means an
87 establishment with a permit for the sale of alcoholic liquor to consumers
88 issued pursuant to section 30-22a, as amended by this act, that, in the
89 calendar year ending December 31, 2002, generated ten per cent or more
90 of its total annual gross income from the on-site sale of tobacco products
91 and the rental of on-site humidors or, for any tobacco bar that
92 commenced operations during the period beginning January 1, 2003,
93 and ending December 31, [2022] 2025, generates at least sixty per cent of
94 the tobacco bar's total annual gross sales from on-site sales of tobacco
95 products, as determined in an annual audit conducted by an
96 independent certified public accountant; and "tobacco product" means
97 cigars and pipe tobacco, and does not include cannabis, cigarettes or
98 chewing tobacco.

99 Sec. 3. Subsection (b) of section 19a-342a of the general statutes is
100 repealed and the following is substituted in lieu thereof (*Effective October*
101 *1, 2026*):

102 (b) (1) No person shall use an electronic nicotine or cannabis delivery
103 system or vapor product: (A) In any area of a building or portion of a
104 building owned and operated or leased and operated by the state or any
105 political subdivision of the state; (B) in any area of a health care
106 institution, including, but not limited to, a psychiatric facility; (C) in any
107 area of a retail establishment accessed by the public; (D) in any
108 restaurant; (E) in any area of an establishment with a permit issued for
109 the sale of alcoholic liquor pursuant to section 30-20a, 30-21, 30-21b, 30-
110 22, 30-22a, as amended by this act, 30-22c, 30-22g, 30-26, 30-28, 30-28a,
111 30-33a, 30-33b, 30-35a, 30-37a, 30-37e or 30-37f, in any area of
112 establishment with a permit issued for the sale of alcoholic liquor
113 pursuant to section 30-22aa issued after May 1, 2003; (F) in any area of a
114 school building or on the grounds of such school; (G) within a child care
115 facility or on the grounds of such child care facility, except, if the child
116 care facility is a family child care home as defined in section 19a-77, such
117 use is prohibited only when a child enrolled in such home is present
118 during customary business hours; (H) in any passenger elevator; (I) in

119 any area of a dormitory in any public or private institution of higher
120 education; (J) in any area of a facility equipped with screens for the
121 simulcasting of off-track betting race programs or jai alai games; (K) in
122 any room offered as an accommodation to guests by the operator of a
123 hotel, motel or similar lodging; (L) in any area of a correctional facility,
124 halfway house or residential facility funded by the Judicial Branch; or
125 (M) in any area of a platform or a shelter at a rail, busway or bus station,
126 owned and operated or leased and operated by the state or any political
127 subdivision of the state. For purposes of this subsection, "restaurant"
128 means space, in a suitable and permanent building, kept, used,
129 maintained, advertised and held out to the public to be a place where
130 meals are regularly served to the public; and "school" has the same
131 meaning as provided in section 10-154a.

132 (2) Subdivision (1) of this subsection shall not apply to the following:
133 (A) Public housing projects, as defined in subsection (b) of section 21a-
134 278a; (B) any classroom where a demonstration of the use of an
135 electronic nicotine or cannabis delivery system or vapor product is
136 taking place as part of a medical or scientific experiment or lesson; (C)
137 any medical research site where the use of an electronic nicotine or
138 cannabis delivery system or vapor product is integral to the research
139 being conducted; (D) establishments without a permit for the sale of
140 alcoholic liquor that sell electronic nicotine delivery systems, vapor
141 products or liquid nicotine containers on-site and allow their customers
142 to use such systems, products or containers on-site; (E) notwithstanding
143 the provisions of subparagraph (E) of subdivision (1) of this subsection,
144 the outdoor portion of the premises of any permittee listed in
145 subparagraph (E) of subdivision (1) of this subsection, provided, in the
146 case of any seating area maintained for the service of food, at least
147 seventy-five per cent of the outdoor seating capacity is an area in which
148 smoking is prohibited and which is clearly designated with written
149 signage as a nonsmoking area, except that any temporary seating area
150 established for special events and not used on a regular basis shall not
151 be subject to the prohibition on the use of an electronic nicotine or
152 cannabis delivery system or vapor product or the signage requirements
153 of this subparagraph; or (F) any tobacco bar. For purposes of this

154 subdivision, "outdoor" means an area which has no roof or other ceiling
155 enclosure; "tobacco bar" means an establishment with a permit for the
156 sale of alcoholic liquor to consumers issued pursuant to section 30-22a,
157 as amended by this act, that, in the calendar year ending December 31,
158 2002, generated ten per cent or more of its total annual gross income
159 from the on-site sale of tobacco products and the rental of on-site
160 humidors or, for any tobacco bar that commenced operations during the
161 period beginning January 1, 2003, and ending December 31, [2022] 2025,
162 generates at least sixty per cent of the tobacco bar's total annual gross
163 sales from on-site sales of tobacco products, as determined in an annual
164 audit conducted by an independent certified public accountant; and
165 "tobacco product" means cigars and pipe tobacco, and does not include
166 cannabis, cigarettes or chewing tobacco.

This act shall take effect as follows and shall amend the following sections:

Section 1	<i>October 1, 2026</i>	30-22a(k)
Sec. 2	<i>October 1, 2026</i>	19a-342(b)
Sec. 3	<i>October 1, 2026</i>	19a-342a(b)

GL *Joint Favorable Subst.*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact:

Agency Affected	Fund-Effect	FY 27 \$	FY 28 \$
Resources of the General Fund	GF - Potential Revenue Gain	See Below	See Below
Revenue Serv., Dept.	Various - Potential Revenue Gain	See Below	See Below

Note: GF=General Fund; Various=Various

Municipal Impact: None

Explanation

The bill allows for additional tobacco bars in the state resulting in a potential revenue gain to the state.

Tobacco bars are required to hold an alcoholic liquor café permit which results in a potential revenue gain to the General Fund to the extent additional permits are applied for. The alcoholic liquor café permit has an annual fee of \$2,000.

The bill also results in a potential tax revenue gain to the state to the extent that additional tobacco bars are permitted by the Department of Consumer Protection (DCP). The actual revenue gain in a given fiscal year will be dependent upon the number of tobacco bars that DCP may permit under this bill and the total volume of annual sales from those establishments.

The Out Years

The annualized ongoing fiscal impact identified above would

continue into the future subject the number of café permits applied for and inflation.

OLR Bill Analysis**sSB 228*****AN ACT CONCERNING LIQUOR PERMITS AND TOBACCO BARS.*****SUMMARY**

This bill allows more tobacco bars to permit certain smoking indoors, including cigars, e-cigarettes, and an electronic cannabis delivery system, but not cigarettes.

Under current law, tobacco bars may do so if they, among other requirements, began operating between January 1, 2003, and December 31, 2022, and are located in a municipality with at least 80,000 people and no other tobacco bar. The bill allows for more tobacco bars to allow these things by extending the eligible starting operating period to December 31, 2025, and lowers the population threshold to 40,000.

As under existing law, a tobacco bar must:

1. hold an alcoholic liquor cafe permit;
2. generate at least 60% of their total annual gross sales from tobacco products (cigars and pipe tobacco) as annually determined by an independent certified public accountant;
3. not allow cigarettes or cigarette tobacco on the premises;
4. have a walk-in humidor as a built-in feature onsite;
5. be in a building that (a) no other owner-occupant, lessee, or tenant has a right to possess or (b) uses the tobacco bar's own heating, ventilation, or air conditioning system to prevent the commingling of air;
6. be in premises equipped with a ventilation system that (a)

provides local mechanical exhaust with no recirculation, (b) circulates at least 60 cubic feet of outdoor air per person per minute to provide adequate indoor air quality, and (c) satisfies the requirements established in ANSI/ASHRAE 62-2001, “ventilation for acceptable indoor air quality”; and

7. provide health coverage to the tobacco bar’s employees and their dependents under the federal Affordable Care Act.

EFFECTIVE DATE: October 1, 2026

COMMITTEE ACTION

General Law Committee

Joint Favorable Substitute

Yea 20 Nay 0 (03/11/2026)